



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 18, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 12102
(TWENTY-SECOND REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of the desensitized hazardous materials identified in paragraph 6. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.56(b) in that explosive materials need not be examined, classed, and approved and § 173.124(a)(2)(iii)(D) in that self-reactive materials need not be approved.
5. BASIS: This special permit is based on the application of Veolia ES Technical Solutions LLC dated May 30, 2024, submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2024055400

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste flammable solids, corrosive, organic, n.o.s. (trinitrobenzene sulfonic acid, not to exceed 1 percent in water)	4.1	UN2925	II
Waste flammable solids, corrosive, organic, n.o.s. (trinitrochlorobenzene, not to exceed 1 percent in water)	4.1	UN2925	II
Waste flammable solids, organic, n.o.s. (hexanitrodiphenylamine, not to exceed 1 percent in clay and pyridine)	4.1	UN1325	II
Waste flammable liquids, n.o.s. (trinitrofluorenone, not to exceed 1 percent in ethanol and water)	3	UN1993	II
Waste flammable solids, organic, n.o.s. (smokeless powder, not to exceed 10 percent in water)	4.1	UN1325	II
Waste flammable liquids, n.o.s. (nitrobromobenzene, not to exceed 10 percent in ethanol)	3	UN1993	II
Waste flammable liquids, n.o.s. (tert-butoxy carbonyl azide, not to exceed 1 percent in acetone)	3	UN1993	II
Hazardous waste liquid, n.o.s. (tetra ethyl ammonium perchlorate, not to exceed 1 percent in water)	9	NA3082	III
Waste environmentally hazardous substance, liquids, n.o.s. (tetra ethyl ammonium perchlorate, not to exceed 1 percent in water)	9	UN3082	III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste flammable liquids, n.o.s. (1H-Tetrazole, not to exceed 1 percent in acetonitrile)	3	UN1993	II
Waste desensitized explosive, solid, n.o.s. (1-hydroxybenzotriazole not to exceed 50 percent in water)	4.1	UN3380	I
Wasted desensitized explosive, liquid, n.o.s. (hydroxyethylhydrazinium nitrate solution, not to exceed 1 percent in water)	3	UN3379	I
Waste desensitized explosive, solid, n.o.s. (rags/wipes wetted with hydroxyethylhydrazinium nitrate solution not to exceed 1 percent in water)	4.1	UN3380	I
Waste desensitized explosive, liquid, n.o.s. (dinitrophenylhydrazine, not to exceed 10 percent in water)	3	UN3379	I
Waste desensitized explosive, liquid, n.o.s. (trinitroresorcinol, not to exceed 1 percent in alcohol)	3	UN3379	I
Waste desensitized explosive, liquid, n.o.s. (nitrourea, not to exceed 1 percent in alcohol)	3	UN3379	I
Waste desensitized explosive, liquid, n.o.s. (tetranitroaniline, not to exceed 1 percent in acetone and water)	3	UN3379	I
Waste desensitized explosive, liquid, n.o.s. (trinitronaphthalene, not to exceed 1 percent in ethanol and water)	3	UN3379	I
Waste desensitized explosive, solid, n.o.s. (tetranitroanisole, not to exceed 1 percent in ethanol and water)	4.1	UN3380	I

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Waste desensitized explosive, solid, n.o.s. (trinitro-m-cresol, not to exceed 1 percent in water)	4.1	UN3380	I
Waste desensitized explosive, solid, n.o.s. (1-hydroxy-7-azabenzotriazole, not to exceed 10 percent in water)	4.1	UN3380	I
Waste self-reactive liquid type C (Diethyl Azodicarboxylate $\leq$ 40% solution in toluene)	4.1	UN3223	N/A

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) For other than UN3223, waste self-reactive liquid type C (Diethyl Azodicarboxylate $\leq$ 40% solution in toluene): prescribed packaging must conform to § 173.201 for liquids or § 173.211 for solids, as appropriate, at the Packing Group I performance level.

(2) For UN3223, waste self-reactive liquid type C (Diethyl Azodicarboxylate $\leq$ 40% solution in toluene): prescribed packaging must be non-bulk and must conform to Packing Method OP2 of § 173.225(d). The maximum quantity (including diluent) per outer package must not exceed three (3) liters.

b. OPERATIONAL CONTROLS:

(1) The maximum concentration (by weight percent) of hazardous material per outer package must not exceed the concentrations listed in paragraph 6. for each respective material.

(2) The maximum net weight of desensitized explosive material (including diluent) per outer package must not exceed 10 kg.

(3) The maximum net weight of dinitrophenylhydrazine (including diluent) per inner package must not exceed 3.5 kg.

(4) For UN3223, waste self-reactive liquid type C (Diethyl Azodicarboxylate $\leq 40\%$ solution in toluene), the maximum concentration of explosive per outer package may not exceed the concentrations listed in the below table.

Diluents (%)				Temperature Controls	
A	B	I	Water	Control	Emergency
None	≥ 60	None	None	N/A	N/A

8. SPECIAL PROVISIONS:

- a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- b. Transportation is only authorized one-way from the point of pickup to a waste management or disposal facility.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS:

- a. A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.
- b. Transportation must be by:
 - (1) Private motor vehicle,
 - (2) Cargo vessel, or
 - (3) Contract motor carrier in a vehicle used exclusively to transport hazardous waste.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: DUNHAM